



CHAPTER clxxxii.

An Act to confirm a Provisional Order under the Private A.D. 1911.
Legislation Procedure (Scotland) Act 1899 relating to
the Glasgow and South Western Railway.

[16th December 1911.]

WHEREAS His Majesty's Secretary for Scotland has after
inquiry held before Commissioners made the Provisional
Order set forth in the schedule hereunto annexed under the
provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed
by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Glasgow and South Western
Railway Order Confirmation Act 1911. Short title.

A.D. 1911.

S C H E D U L E.

GLASGOW AND SOUTH WESTERN RAILWAY.

Provisional Order for conferring further powers on the Glasgow and South Western Railway Company for the construction of works and the acquisition of lands for empowering the Company to create and substitute debenture stock of the Company for the shares of the Ayr and Maybole Junction Railway Company for dissolving that company and for other purposes.

WHEREAS it is expedient that the Glasgow and South Western Railway Company (in this Order called "the Company") should be empowered to construct and maintain the new railways and other works herein-after mentioned and for those and other purposes of their undertaking to acquire the lands herein-after respectively described or referred to :

And whereas plans and sections showing the lines and levels of the said railways and works and plans showing the lands required or which may be taken for the purposes or under the powers of this Order and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands have been deposited with the principal sheriff clerks of the counties of Renfrew and Ayr respectively :

And whereas it has been found desirable to alter the line and levels of a portion of the railway (No. 1) originally proposed to be authorised by this Order and plans and sections showing the line and levels of such alteration and a book of reference thereto containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands through which the said alteration will pass have been deposited with the principal sheriff clerk of the county of Renfrew :

And whereas the plans sections and books of reference firstly herein-before mentioned as amended by the plans sections and book of reference lastly herein-before mentioned are in this Act referred to as the deposited plans sections and books of reference respectively :

And whereas it is expedient that the time now limited by the Glasgow and South Western Railway Order 1908 for the compulsory purchase of certain of the lands required for the purposes of the railways and works authorised by the Glasgow and Renfrew District Railway Act 1897 (herein-after referred to as "the Act of 1897") should be further extended: A.D. 1911.

And whereas by the Glasgow and South Western Railway Act 1899 the Company were empowered (inter alia) to make and maintain the Railways Nos. 7 and 8 therein described and by the Glasgow and South Western Railway Orders 1904 1906 and 1908 the powers of the Company for the completion of the said railways have from time to time been extended but have now expired and it is expedient that the Company should be empowered to abandon the said railways:

And whereas by the Ayr and Maybole Junction Railway Act 1854 the Ayr and Maybole Junction Railway Company (in this Order referred to as "the Maybole Company") were incorporated and were by that Act authorised to construct a line of railway from Ayr to Maybole which has been completed and opened for traffic:

And whereas by the Glasgow and South Western Railway Act 1871 the undertaking of the Maybole Company was vested in the Company and by such Act it was provided that the Maybole Company should remain incorporated only for the purpose of executing certain mortgages or renewals of mortgages (which have since been paid off by the Company) and of receiving and if necessary enforcing the payment of the yearly sum of two thousand four hundred and fifty pounds by the said Act provided to be paid by the Company to the Maybole Company and any other debts and moneys due to them and of distributing the same among their shareholders and of enforcing and fulfilling the provisions of the said Act of 1871 in which they were interested:

And whereas by the said Act of 1871 it was further provided that the said yearly payment of two thousand four hundred and fifty pounds should be held to be the revenue of the Maybole Company out of which dividends to the shareholders of that company might be declared and paid:

And whereas the capital of the Maybole Company consists of three thousand four hundred and fifty shares of ten pounds each whereon the yearly payment aforesaid provides a dividend

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A.D. 1911. at the rate of seven per cent. per annum and an arrangement has been come to between the Company and the Maybole Company under which the Maybole Company is to receive debenture stock of the Company in lieu of the said capital of the Maybole Company and it is expedient that debenture stock of the Company should be substituted for such shares in such manner as to provide to the shareholders of the Maybole Company a dividend equal in amount to that at present paid to them under the said Act of 1871 and that such an amount of Glasgow and South Western Railway four per cent. debenture stock should accordingly be created as may be necessary for such purpose and that provision should be made for the dissolution and winding up of the Maybole Company :

And whereas it is expedient that further powers should be conferred upon the Company and upon any joint committee (incorporated by Act of Parliament or Order) of the Company and any other company or companies or any joint committee (so incorporated) on which the Company is represented with respect to the lease or other disposal of lands acquired by the Company or any such joint committee which are not or eventually may not be required for the purposes for which they may have been so acquired :

And whereas it is expedient that the Company should be empowered to raise a further sum of money for the purposes of this Order and for the general purposes of their undertaking and to apply their funds to the purposes authorised by this Order and that further powers should be conferred upon the Company as herein-after contained :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title.

1. This Order may be cited for all purposes as the Glasgow and South Western Railway Order 1911 and shall come into operation at the date of the passing of the Act confirming the same which date is in this Order referred to as "the commencement of this Order."

Incorporation
of general Acts.

2. The Lands Clauses Acts the Railways Clauses Consolidation (Scotland) Act 1845 Part I. (relating to the construction of a

railway) Part II. (relating to extension of time) and Part V. A.D. 1911.
(relating to amalgamation) of the Railways Clauses Act 1863 the
clauses and provisions of the Companies Clauses Consolidation
(Scotland) Act 1845 with respect to the following matters (that
is to say):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the
payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the share-
holders;

The borrowing of money by the Company on mortgage or
bond;

The conversion of the borrowed money into capital;

The consolidation of the shares into stock;

The general meetings of the Company and the exercise of
the right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special
Act by all parties interested;

and Part I. (relating to cancellation and surrender of shares)
Part II. (relating to additional capital) and Part III. (relating
to debenture stock) of the Companies Clauses Act 1863 as
amended by subsequent Acts are (except where expressly varied
by this Order) incorporated with and form part of this Order
and for the purposes of the said Acts this Order shall be
deemed to be a special Act.

3. In this Order the several words and expressions to which Interpretation.
meanings are assigned by the Acts wholly or partially incorpo-
rated herewith have the same respective meanings unless there
be something in the subject or context repugnant to such con-
struction and the expression "the railway" or "the railways"
means the new railways authorised by this Order.

4. Subject to the provisions of this Order the Company may Power to
make and maintain in the lines and according to the levels make rail-
shown on the deposited plans and sections the railways herein- ways.
after described with all proper stations sidings approaches works
and conveniences connected therewith and may enter upon take.

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A.D. 1911. and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for that purpose. The railways herein-before referred to and authorised by this Order are—

(1) A railway (No. 1) 1 furlong and 6·04 chains in length wholly situate in the parish and royal burgh of Renfrew in the county of Renfrew commencing by a junction with the Company's Paisley and Renfrew Railway at a point ninety-five yards or thereabouts measured along that railway in a south-westerly direction from the south side of Meadowside Street and terminating on the east side of the Pudzeoch Burn at a point sixty yards or thereabouts measured in an easterly direction from the northmost corner of Meadowside Street at its junction with Ferry Road Renfrew :

(2) A railway (No. 2) 1 furlong and 1·33 chains in length wholly situate in the said parish and royal burgh of Renfrew and partly upon works authorised by the Clyde Navigation Act 1911 commencing by a junction with railway (No. 1) at its termination as herein-before described and terminating on the quay or wharf authorised by the said Act on the south side of the River Clyde at a point seventy yards or thereabouts measured in an easterly direction from the Ferry Inn Renfrew.

Railways to form part of Company's undertaking.

5. The railways shall for the purposes of maximum rates and charges for merchandise traffic (including perishable merchandise by passenger train) be part of the railways of the Company as if the same had been part of the Glasgow and South Western Railway at the date of the passing of the Railway Rates and Charges No. 22 (Glasgow and South Western Railway &c.) Order Confirmation Act 1892 and shall for all other purposes be part of the undertaking of the Company as it existed at the date of the passing of the Glasgow and South Western Railway Consolidation Act 1855.

Power to cross certain roads on level.

6. Subject to the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 and in Part I. of the Railways Clauses Act 1863 contained in reference to the crossing of roads on the level the Company may in the construction of railway

(No. 1) carry the same with a single line only whilst the railway shall consist of a single line and afterwards with a double line only across and on the level of the road numbered on the deposited plans 8 in the parish and royal burgh of Renfrew. A.D. 1911.

7. Notwithstanding anything contained in section 39 of the Railways Clauses Consolidation (Scotland) Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried over the railways or any of them by a bridge or bridges or the immediate approaches thereto except so far as the level of such road or highway or approaches is permanently altered so as to increase the gradient. Company not liable to repair surface of road level of which is not permanently altered.

8. If the Company fail within the period limited by this Order to complete the railways the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the railways are completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the uncompleted railway or railways and the said penalty may be applied for by any landowner or other person claiming to be compensated or interested in respect of the uncompleted railway or railways in accordance with the provisions of the next following section of this Order and in the same manner as the penalty provided in the third section of the Railway and Canal Traffic Act 1854. Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the King's and Lord Treasurer's Remembrancer on behalf of the Court of Exchequer in Scotland in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as herein-after provided. But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company was prevented from completing or opening the uncompleted railway or railways by unforeseen accident or circumstances beyond their control. Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control. Imposing penalty unless railways opened.

9. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the Edinburgh Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or injured. Application of penalty towards compensation of parties injured.

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A.D. 1911. otherwise rendered less valuable by the commencement construction or abandonment of the railway in respect of which the penalty has been incurred or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Order for the purposes of the said railway or railways and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the Court of Exchequer in Scotland may seem fit. If no such compensation shall be payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a judicial factor has been appointed or the Company is insolvent or the railway or railways in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such judicial factor or be applied in the discretion of the Court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Company.

Period for
completion
of railways.

10. If the railways are not completed within the period of seven years from the commencement of this Order then on the expiration of that period the powers by this Order granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Works
below high-
water mark
not to be
commenced
without
consent of
Board of
Trade.

11. The Company shall not under the powers of this Order construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration

or extension the like consents or approvals If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily. A.D. 1911.

12. Whereas railway (No. 1) by this Order authorised and the works in connexion therewith (in this section called "the railway") will cross on the level the tramways on the Ferry Road Renfrew belonging to the Paisley District Tramways Company (in this and the next succeeding section called "the tramways company") Therefore the following provisions for the protection of the tramways company shall unless otherwise agreed upon between the Company and the tramways company apply (that is to say):—

For protection of
Paisley
District
Tramways
Company.

(1) The Company shall not in the construction maintenance and use of the railway injure alter or interfere with (except as herein-after provided in this section) the said tramways and the electrical equipment thereof and the works connected therewith (herein-after together called "the tramways") or cause any unnecessary interruption to the traffic thereon:

(2) Before commencing any works or operations affecting the tramways the Company shall submit plans sections and specifications of their intended works to the tramways company and shall obtain their approval thereof and the said works and operations shall be carried out in conformity with the plans sections and specifications so approved at the sight and to the reasonable satisfaction of the engineer of the tramways company and shall thereafter be maintained and repaired under his superintendence and to his reasonable satisfaction Provided always that if the tramways company do not within twenty-one days after the date on which the said plans sections and specifications are delivered by the Company to the tramways company intimate to the Company their approval or disapproval of the said plans sections and specifications the tramways company shall be deemed to have approved thereof and the Company may thereupon proceed to execute and complete the said works and operations:

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(3) If any injury to or any interference with the tramways or any interruption to the traffic on the tramways shall arise or be occasioned at any time by the works or operations of the Company or any officer employee or agent of the Company in connexion with the railway or the use thereof and not by reason of any fault or neglect of the tramways company or their servants or any person using or travelling by the tramways the Company shall forthwith make good or remove such injury interference or interruption at their own expense or in default of their so doing the tramways company may execute the necessary works for that purpose at the expense of the Company and the Company shall repay to the tramways company all costs and expenses incurred by them in so doing and make good all loss or damage sustained by the tramways company in consequence of such injury interference or interruption The Company shall also free and relieve the tramways company from all claims for injury and loss in respect of damage to any person or property through any accident occasioned by or arising out of the construction of the railway or the maintenance or use thereof and not occasioned or arising by reason of any fault or neglect of the tramways company or their servants or any person using or travelling by the tramways in which latter case the tramways company shall be responsible for the said claims:

(4) Nothing contained in or which may under the provisions of this Order be done by the Company shall prevent the tramways company from maintaining and repairing and when necessary altering or reconstructing their tramways at the point where the railway crosses the tramways on Ferry Road Renfrew or from using and working the same without interference on the part of the Company and without incurring any liability to the Company or any parties working or using the railway for any loss injury damage expense or interruption of traffic on the railway which may arise from such maintenance repair alteration reconstruction user or working and any extra expense which the tramways company may reasonably incur or be put

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to in such maintenance repair alteration or reconstruction by reason of the formation maintenance working or user of the railway shall be paid by the Company Provided that all operations in connexion with such maintenance repair alteration or reconstruction shall be executed by the tramways company at such times and in such manner as to cause as little interruption or inconvenience as practicable to the traffic on the railway but any such operations which may affect the railway shall be subject to the reasonable approval of the engineer of the Company :

- (5) The speed at which the engines waggons and carriages of the Company may cross the tramways at the point of crossing the same by the railway on Ferry Road shall be such as shall be allowed by the Board of Trade and subject to any regulations made by the Board of Trade the Company shall be bound to give precedence over the engines waggons and carriages of the Company to any tramway car which may be about to pass over the crossing No engine or carriage belonging to the Company shall except in case of emergency be allowed to stand on the crossing over the Ferry Road :
- (6) In the event of any special precautions or requirements being in the opinion of the Board of Trade necessitated at the said level crossing by reason of the formation maintenance working or user of the railway the Company shall relieve the tramways company of whatever outlay and expense may be reasonably incurred by them in adopting or giving effect to such precautions or requirements :
- (7) If any difference shall at any time arise between the Company and the tramways company or between their respective engineers with respect to any of the matters referred to in this section such difference shall be referred to and determined by an arbiter to be agreed upon or failing agreement to be appointed by the Board of Trade on the application of either the tramways company or the Company.

13. The arrangements made between the Company and the tramways company in pursuance of the immediately preceding section shall be submitted for the approval of the Board of

As to level crossing over Ferry Road.

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A.D. 1911. Trade and the level crossing over the Ferry Road shall not be brought into use until such arrangements shall have been approved by the Board and any requirements which the Board may make with regard to the conduct of traffic over the level crossing shall be complied with by the Company and the tramways company.

Extending
running
powers and
facilities of
Caledonian
Railway
Company.

14. The running powers facilities and other rights conferred on the Caledonian Railway Company under the agreements between them and the Company scheduled to and confirmed by the Glasgow and South Western Railway (Additional Powers) Act 1863 and the Glasgow and South Western Railway (Additional Powers) Act 1873 shall extend and apply to Railways Nos. 1 and 2 by this Order authorised and to the lands thirdly described in and authorised to be acquired under and in terms of the section of this Order whereof the marginal note is "Power to Company to acquire lands for general purposes" so far as such last-mentioned lands may be used for any of the purposes mentioned in the said agreements or either of them in connexion with the Paisley and Renfrew Railway of the Company.

For pro-
tection of
corporation
of Glasgow.

15. For the protection of the corporation of the city of Glasgow (in this section referred to as "the corporation") the provisions of sections 18 to 23 of the Railways Clauses Consolidation (Scotland) Act 1845 shall for the purposes of this Order extend and apply to the water and gas mains pipes and apparatus of the corporation and shall be construed as if the corporation were mentioned in those sections in addition to "company or society."

Power to
Company to
acquire lands
for general
purposes.

16. Subject to the provisions of this Order and in addition to the other lands which the Company are by this Order authorised to acquire the Company may enter upon take use and appropriate for the purpose of extending their station siding and other accommodation and for other purposes connected with their undertaking all or any of the lands following delineated on the deposited plans and described in the deposited books of reference relating thereto and may hold and use any of the said lands already acquired by them for the said purposes (that is to say):—

- (1) Certain lands in the parish of Paisley in the county of Renfrew situated on the north side of and adjoining the Company's Paisley Canal Line between Bella-houston Station and East Henderston farmsteading:

- (2) Certain lands in the parish of Paisley in the county of Renfrew situated on the south side of and adjoining the Company's main line west of and near to Elderslie Station : A.D. 1911.
- (3) Certain lands in the parish of Renfrew in the royal burgh of Renfrew and in the parish of Renfrew in the county of Renfrew situated on both sides of and adjoining the Company's Paisley and Renfrew Railway west of and near to South Renfrew Station :
- (4) Certain lands in the parish of Kilmacolm in the county of Renfrew situated on the west side of the Company's Greenock Branch at Kilmacolm Station :
- (5) Certain lands in the parish and burgh of Kilwinning in the county of Ayr situated on the east side of and adjoining the Company's Ayr Branch at Kilwinning Station :
- (6) Certain lands in the parish of Kilwinning in the county of Ayr situated on the south side of and adjoining the Company's Doura Branch west of Nethermain's Level Crossing near Kilwinning :
- (7) Certain lands in the parish of Dundonald in the burgh of Troon in the county of Ayr situated on the east side of and adjoining the Company's Troon loop line at Troon passenger station :
- (8) Certain lands in the parish of Dundonald in the county of Ayr situated on the east side of and adjoining the Company's Ayr Branch north of Lochgreen Junction near Troon :
- (9) Certain lands in the parish and royal burgh of Ayr in the county of Ayr situated on the east side of and adjoining the Company's Ayr Branch and immediately on the south side of Whitletts Road Ayr :
- (10) Certain lands in the parish and burgh of Girvan and in the parish of Girvan in the county of Ayr situated on the east side of and adjoining the Company's Ayrshire and Wigtownshire Branch at and east of Girvan passenger station :
- (11) Certain lands in the parish and burgh of Ardrossan in the county of Ayr situated on the south side of and adjoining the Company's Ardrossan Branch at

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South Beach Station Ardrossan and west of and
 adjoining South Beach Road:

(12) Certain lands in the parish of Tarbolton in the county
 of Ayr situated on both sides of and adjoining the
 Company's Ayr and Cumnock Branch between Ann-
 bank Station and the River Ayr:

(13) Certain lands in the parish of Dundonald in the
 county of Ayr situated at or near Parkthorn Quarries
 and lying partly on the south-east side of and
 adjoining the Company's line between Drybridge and
 Barassie Stations and partly on the south-east side of
 the public road on the western side of the said
 quarries.

Confirming
 acquisition
 of certain
 lands.

17. Whereas certain portions of the lands referred to in the
 immediately preceding section of this Order have already been
 acquired by the Company therefore the acquisition of such lands
 is hereby sanctioned and confirmed as if the same had been
 acquired under the powers of this Order For the purposes of
 section 3 of the Housing of the Working Classes Act 1903
 as applied to Scotland by the Housing Town Planning &c.
 Act 1909 such lands shall be deemed to have been acquired
 under the powers of this section.

As to private
 rights of way
 over lands
 taken com-
 pulsorily.

18. All private rights of way over any lands which shall
 under the powers of this Order be acquired compulsorily shall
 as from the date of such acquisition be extinguished Provided
 that the Company shall make full compensation to all parties
 interested in respect of any such rights and such compensa-
 tion shall be settled in manner provided by the Lands Clauses
 Acts with reference to the taking of lands otherwise than by
 agreement.

Period for
 compulsory
 purchase of
 lands.

19. The powers of the Company for the compulsory purchase
 of lands for the purposes of this Order shall cease after the
 expiration of three years from the commencement of this Order.

Power to
 owners to
 grant servi-
 tudes &c.

20. Persons empowered by the Lands Clauses Acts to sell
 and convey or discharge lands may if they think fit subject
 to the provisions of those Acts and of this Order grant to the
 Company any servitude right or privilege (not being a servitude
 right or privilege of water in which persons other than the
 grantors have an interest) required for the purposes of this
 Order in over or affecting any such lands and the provisions
 of the said Acts with respect to lands and rentcharges or feu

duties so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively. A.D. 1911

21. And whereas in the construction of the works by this Order authorised or otherwise in the exercise by the Company of the powers of this Order it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

Owners may be required to sell part only of certain properties.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Order and whereof a portion only is required for the purposes of the Company or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbiters or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto

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and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:

- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses

reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit. A.D. 1911.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation (Scotland) Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

22. The quantity of land to be acquired by agreement by the Company for the extraordinary purposes mentioned in the Railways Clauses Consolidation (Scotland) Act 1845 in connexion with the railways and works authorised by this Order shall not exceed ten acres and such land shall be in addition to the lands which the Company are authorised by this Order to take compulsorily but nothing in that Act or in this Order shall exempt the Company from any interdict action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land so acquired by agreement. Lands for extraordinary purposes.

23. The powers granted by the Act of 1897 as now extended by the Glasgow and South Western Railway Order 1908 for the compulsory purchase of the several lands referred to in the Second Schedule to the Glasgow and South Western Railway Order 1906 are hereby further extended and shall continue in force and may be exercised by the Company and the Caledonian Railway Company for the further period of three years from the sixth day of August one thousand nine hundred and eleven and on the expiration of that period those powers shall cease but nothing in this Order shall relieve the said companies from the obligations or restrictions imposed by section 30 (Restrictions on displacing persons of labouring class) of the Act of 1897. Extension of time for purchase of lands in connexion with Glasgow and Renfrew District Railway.

24.—(1) The Company and the Caledonian Railway Company (in this section referred to as “the two companies”) under the powers granted by the Act of 1897 for the compulsory purchase of lands as extended by this Order shall not without the consent For protection of trustees of Clyde Navigation.

A.D. 1911. of the trustees of the Clyde Navigation (in this section called "the trustees") acquire any land belonging to or held in trust for the trustees to the east of a line drawn parallel to and distant one hundred and twenty feet eastwards from the western side of Marlingford Road and to the north of a line drawn parallel to and distant one hundred and twenty feet northwards from the existing northern boundary of the two companies' property. Provided always that the trustees shall provide such additional portions of their land as may be required for accommodation works (if any) from the trustees' remaining lands on such terms as may be agreed upon or failing agreement as may be fixed by arbitration in terms of the Lands Clauses Acts.

(2) The extension of time by this Order granted shall not without the consent of the trustees entitle the two companies to acquire any portion of the area of land extending to one hundred and ten acres or thereby described in the heads of agreement entered into between the town council of Renfrew Alexander Archibald Speirs of Elderslie and the trustees dated the twenty-second twenty-fourth and twenty-eighth March one thousand nine hundred and four scheduled to and confirmed by the Clyde Navigation Act 1905.

Abandonment of certain railways.

25. The Company shall abandon the construction of Railway No. 7 and Railway No. 8 authorised by the Glasgow and South Western Railway Act 1899.

Compensation for damage to land by entry &c. for purposes of railways abandoned.

26. The abandonment by the Company under the authority of this Order of any portion of any railway or works shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Company on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out of the line of railway and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Company to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation (Scotland) Act 1845 or the Glasgow and South Western Railway Act 1899.

27. Where before the commencement of this Order any contract has been entered into or notice given by the Company for the purchasing of any land for the purposes of or in relation to any portions of the railways or works authorised to be abandoned by this Order the Company shall be released from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall be made by the Company to the owners and occupiers or other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation paid for lands taken under the provisions thereof.

A.D. 1911.
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 Compensation to be made in respect of railways abandoned.

28. As and from the first day of February one thousand nine hundred and twelve (herein-after referred to as "the date of exchange") every holder of shares of the Maybole Company shall in lieu of and in exchange for each ten-pound share held by him become and be the holder of the sum of seventeen pounds ten shillings four per cent. debenture stock of the Company bearing dividend as from the date of exchange.

Shares of Maybole Company to be exchanged for stock of Company.

29. Notwithstanding anything in this Order contained no holder of shares of the Maybole Company shall become entitled under this Order to any fractional part of a pound of debenture stock of the Company but in every case in which any such holder would but for this enactment have become entitled to a fractional part of a pound of such stock the Company may at their option pay to such holder such a sum in cash as shall be equal to the market value of such fractional part or receive from such holder such an amount in cash as will make up the amount of stock to be issued to him to an integral number of pounds.

Fractional parts of a pound of stock.

30. The several persons whose names as proprietors of shares appear as such in the books of the Maybole Company at the date of exchange or their respective executors-administrators successors or assigns shall for the purpose of the issue to them of certificates of debenture stock be deemed to be the proprietors and holders of such shares.

Shareholders in books of Maybole Company to be deemed proprietors.

31. On and after the date of exchange every holder of shares in the Maybole Company shall upon the delivery of the certificates

As to exchange of certificates.

[Ch. clxxxii.] *Glasgow and South Western* [1 & 2 GEO. 5.]
Railway Order Confirmation Act, 1911.

A.D. 1911. of the same to the Company be entitled to receive instead thereof certificates of the debenture stock to which such proprietor or holder is entitled under the provisions of this Order and all certificates with respect to the shares of the Maybole Company shall as from such date be and the same are hereby cancelled.

Providing for loss or destruction of certificates of shares in Maybole Company. 32. If the certificates for any shares in the Maybole Company be lost or destroyed then upon proof thereof to the satisfaction of the directors of the Company they shall deliver to the person entitled to such certificate a certificate for the debenture stock to which he would be entitled under this Order as if such first-mentioned certificate had not been lost or destroyed.

Provision in cases where Company are unable to ascertain person to whom certificates of debenture stock should be issued. 33. If the Company are for twelve months after the date of exchange unable after reasonable inquiry to ascertain the persons to whom any certificates of debenture stock ought to be issued as aforesaid or cannot obtain a sufficient discharge for the same the Company may transfer the same to the King's and Lord Treasurer's Remembrancer on behalf of the Court of Exchequer in Scotland and every such transfer shall conclusively discharge the Company from all further liability with regard to any debenture stock so transferred and for the purpose of this Order such debenture stock shall be deemed to be issued to the person absolutely entitled thereto and any person afterwards showing to the satisfaction of the Court of Exchequer in Scotland that he is entitled to such debenture stock may obtain a transfer of such debenture stock accordingly.

Debenture stock issued to holders of shares in Maybole Company to be subject to same trusts. 34. All debenture stock issued to holders of shares in the Maybole Company under the powers of this Order shall be held subject to the same trusts and obligations as those upon or to which the shares in the Maybole Company's capital in respect of which such debenture stock is substituted immediately before the commencement of this Order were held or subject and so as to give effect to and not revoke any will or other instrument disposing of or affecting any such shares in the Maybole Company's capital and every testamentary disposition affecting such shares shall be held to apply to the debenture stock so substituted therefor.

Trustee shareholders of Maybole 35. Trustees executors administrators and all other holders in any representative or fiduciary capacity of any shares in the

Maybole Company may and shall accept the debenture stock of the Company to be issued to the several holders of the shares of the Maybole Company in substitution for such shares and may and shall hold dispose of or otherwise deal with the same in all respects as they might have held disposed of or otherwise dealt with the shares for which such stock of the Company was substituted.

A.D. 1911.
 Company to accept substituted stock.

36. As on and from the date of exchange there shall be created by virtue of this Order and without further or other authority in addition to any other debenture stock which the Company are by any other Act or Order authorised to create and issue debenture stock of the Company to such an amount as may be necessary to carry into effect the foregoing provisions of this Order relating to the Maybole Company and the interest of all such debenture stock shall rank *pari passu* with the interest of all mortgages at any time after the passing of this Order created by the Company and shall have priority over all principal moneys secured by such mortgages. The rate of interest to be attached to such debenture stock shall be the rate payable on the other debenture stock of the Company at the date of exchange.

Debenture stock of Company created.

37. On and after the date of exchange all buildings lands and property of every description rights and privileges possessed held or acquired by the Maybole Company shall be vested in the Company and as from the said date the Maybole Company shall be and is hereby dissolved except for the purpose of winding up their affairs for which purpose they may exercise all such powers and authorities as are necessary.

Dissolution of Maybole Company.

38. And whereas lands have from time to time been purchased or acquired by the Company and by joint committees incorporated by Act of Parliament or Order on which the Company may be represented adjoining or near to railways or stations belonging to the Company or belonging to or worked or managed by such joint committees but such lands are not immediately required for the purposes of the undertaking of the Company or of such joint committees as the case may be and it is expedient that further powers should be conferred upon the Company and such joint committees respectively with respect to such lands. Therefore notwithstanding anything contained in the Lands Clauses Consolidation (Scotland) Act 1845 or in any

Power to lease &c. lands.

A.D. 1911. Act or Order relating to the Company or any such joint committees with which that Act is incorporated the Company or any such joint committees shall not be required to sell or dispose of any such lands or any lands acquired under the powers of this Order which may not be immediately required for such purposes but may retain hold or use or may lease or otherwise dispose of the same in consideration of such rent or on such other terms as the Company or committees exercising the said powers may think fit.

Power to
Company
to raise
additional
capital.

39.—(1) The Company may raise for the purposes of this Order by the creation and issue of new shares or stock such additional capital as they think fit not exceeding in the whole the sum of fifty thousand pounds and they may create and issue such new shares or stock either wholly or partially as ordinary or wholly or partially as preference shares or stock as they may think fit.

(2) The provisions contained in section 37 of the Glasgow and South Western Railway Act 1898 as to the issue of ordinary shares or stock as preferred and deferred shares or stock shall extend and apply to any ordinary shares or stock issued under this Order.

(3) Preference shares or stock issued by the Company under this Order shall be entitled to the preferential dividend or interest assigned thereto only out of the profits of each year ending on the thirty-first day of January.

(4) Preference stock created under the powers of this section shall if so declared by the resolution creating the same form part of and rank *pari passu* with any preference stock created or to be created under the powers of section 27 (Power to create preference stocks of one class) of the Glasgow and South Western Railway Act 1900.

Shares not
to be issued
until one-
fifth paid.

40. The Company shall not issue any share under the authority of this Order of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one-fifth of the amount of such share shall have been paid in respect thereof.

Dividends on
new shares
or stock.

41. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or

description proportioned to the whole amount from time to time called up and paid on such new shares or to the whole amount of such stock as the case may be. A.D. 1911.

42. Each holder of new shares or stock in the capital by this Order authorised to be raised shall be entitled to the same number of votes in respect thereof which the possession of an equal nominal amount of the existing capital stock of the Company of the same class or description would have conferred upon him. Provided always that except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned. Votes in respect of new shares or stock.

43. Subject to the provisions of any Act or Order already passed or confirmed by which the Company are authorised to raise capital by new shares or stock and to the provisions of this Order the Company may if they think fit raise by the creation and issue of new shares or stock of one and the same class all or any part of the aggregate capital which they are by such other Act or Order and this Order respectively authorised to raise by the creation and issue of new shares or stock. Power to Company to raise capital by new shares or stock of one class.

44. The Company may in respect of the additional capital of fifty thousand pounds which they are by this Order authorised to raise borrow on mortgage of their undertaking any moneys not exceeding in the whole sixteen thousand six hundred and sixty-six pounds but no part thereof shall be borrowed until shares for so much of the said additional capital as is to be raised by means of shares is issued and accepted and one-half of such capital is paid up and the Company have proved to the sheriff who is to certify under the forty-second section of the Companies Clauses Consolidation (Scotland) Act 1845 before he so certifies that shares for the whole of such capital have been issued and accepted and that one-half of such capital has been paid up and that not less than one-fifth part of the amount of each separate share in such capital has been paid on account thereof before or at the time of the issue or acceptance thereof and until stock for one-half of so much of the said additional capital as is to be raised by means of stock is fully paid up and the Company have proved to such sheriff as aforesaid before he so certifies that such shares or stock as the case may be were issued and accepted bonâ fide and are held by the persons to whom the same were issued or their executors administrators Power to Company to borrow.

[Ch. clxxxii.] *Glasgow and South Western* [1 & 2 Geo. 5.]
Railway Order Confirmation Act, 1911.

A.D. 1911. successors or assigns and also so far as the said additional capital is raised by shares that such persons their executors administrators successors or assigns are legally liable for the same and upon production to such sheriff of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Repealing provisions of former Acts and Orders with respect to appointment of a judicial factor.

45. Every provision in any Act or Order passed before the present session of Parliament whereby the Company is authorised to raise by borrowing money for the purposes of their undertaking with respect to the appointment of a judicial factor for enforcing payment by the Company of arrears of principal money or principal money and interest shall be and the same is hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings which may have been commenced prior to the confirmation of this Order under any such provision.

For appointment of a judicial factor.

46. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than ten thousand pounds in the whole.

Former mortgages to have priority.

47. All mortgages and bonds granted by the Company in pursuance of the powers of any Act of Parliament or Order before the commencement of this Order and subsisting at the commencement hereof shall during the continuance of such mortgages and bonds as regards the undertaking comprised in and assigned by such mortgages and bonds respectively and subject to the provisions of the Acts or Orders under which such mortgages and bonds were respectively granted have priority over any mortgages to be granted by virtue of this Order but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created by the Company.

Power to Company to create debenture stock.

48. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the

interest of all debenture stock at any time after the commencement of this Order created and issued by the Company shall rank *pari passu* with the interest of all mortgages at any time after the commencement of this Order granted by the Company and shall have priority over all principal moneys secured by such mortgages. A.D. 1911.

49. All moneys raised by the Company under the provisions of this Order whether by shares stock debenture stock or borrowing shall be applied only to the purposes of this Order and to the general purposes of the undertaking of the Company and to defray expenses incurred or to be incurred by them in the execution of works the acquisition of lands the improvement and provision of stations sidings and works the erection or rebuilding of dwelling-houses and other buildings for workmen and employees and the improvement and provision of working apparatus machinery plant and stock being in each case purposes to which capital is properly applicable. Application of moneys by Company.

50. The Company may apply to or towards the purposes of this Order to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts or Orders and which are not required for the purposes to which they are by those Acts or Orders made specially applicable. Power to Company to apply authorised capital to purposes of Order.

51. No interest or dividend shall be paid out of any share or loan capital which the Company are by this Order or any other Order or any Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Order shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation (Scotland) Act 1845. Interest not to be paid out of capital.

52. The Company shall not out of any money by this Order authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament or any General Order made in pursuance of the Private Legislation Procedure (Scotland) Act 1899 now or hereafter in force may be required to be deposited in respect of any application to Parliament for Deposits for future Acts or Orders not to be paid out of capital.

A.D. 1911. the purpose of obtaining an Act or Order authorising the Company to construct any other railway or to execute any other work or undertaking.

Provision as
to general
Railway
Acts.

53. Nothing herein contained shall exempt the Company or the Caledonian Railway Company from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised by this Order.

Crown
rights.

54. Nothing in this Order or in the Act of 1897 shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing contained herein or in the Act of 1897 shall authorise the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Expenses of
Order.

55. All costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Company.

[1 & 2 GEO. 5.] *Glasgow and South Western* [Ch. clxxxii.]
Railway Order Confirmation Act, 1911.

The SCHEDULE referred to in the foregoing Order.

A.D. 1911.

DESCRIBING PROPERTIES OF WHICH PARTS ONLY ARE REQUIRED
TO BE TAKEN BY THE COMPANY.

Nos. on deposited Plans.	Parish or other Area.	Description of Property.
	RAILWAY No. 1.	
3	Parish of Renfrew royal burgh of Renfrew county of Renfrew.	Storage yard.
9	Parish of Renfrew royal burgh of Renfrew county of Renfrew.	Harbour (Renfrew Harbour). harbour wall burn (Pudzeoch) and banks mooring posts and chains and storage yard.
	RAILWAY No. 2.	
9 9	Parish of Renfrew royal burgh of Renfrew county of Renfrew.	River (River Clyde) harbour (Renfrew Harbour) Renfrew basin harbour wall burn (Pudzeoch) and banks mooring posts and chains and storage yard.

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